

26STCV06895 26STCV06895

County: los-angeles

Division: Civil Law and Motion

Department: 415

Hearing date: 2026-09-01

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C415%2C09%2F01%2F2026

Source SHA-256: 871d7575be896c716bd27c90fd7fb72f7184cd719194090e3d73a9f2a43d956b

Case Number: 26STCV06895 Hearing Date: September 1, 2026 Dept: 415

Tentative Ruling

Judge Rolf M. Treu, Department 415

HEARING

DATE: September 2,

2026 TRIAL

DATE: Not set.

CASE: Garcia v. Nobu LA, LLC, et al.

CASE

NO.: 26STCV06895

MOTION TO

COMPEL ARBITRATION

MOVING PARTY/PARTIES: Defendants Nobu, L.A., LLC and Darren Kim

RESPONDING PARTY/PARTIES: Plaintiff

Daniel Garcia

PROOF OF SERVICE:

.

Plaintiff addresses the merits of

Defendants' motion, and thereby waived any procedural objections. (See *In re Marriage of Falcone* (2008)

164 Cal.App.4th 814, 826.)

CASE HISTORY:

.

March 3, 2025: Complaint filed.

STATEMENT OF MATERIAL FACTS AND/OR

PROCEEDINGS:

Plaintiff

Daniel Garcia ("Plaintiff") sued his former employer, Defendant Nobu LA, LLC

("Nobu"), and his former supervisor, Darren Kim ("Kim") for employment

discrimination. Plaintiff alleges that

Kim terminated Plaintiff's employment with Nobu based on Plaintiff's

disability. Nobu and Kim (collectively,

"Defendants") move to compel Plaintiff to arbitrate his claims. Plaintiff opposes the motion.

TENTATIVE RULING:

Defendants'

motion to compel arbitration is GRANTED.

Moving

party to give notice.

DISCUSSION:

Motion to compel arbitration

The moving party on a petition to

compel arbitration “bears the burden of proving the existence of a valid

arbitration agreement by a preponderance of the evidence, while a party

opposing the petition bears the burden of proving by a preponderance of the

evidence any fact necessary to its defense. The trial court sits as the trier

of fact, weighing all the affidavits, declarations, and other documentary

evidence, and any oral testimony the court may receive at its discretion, to

reach a final determination.” (Ruiz

v. Moss Bros. Auto Group, Inc. (2014) 232 Cal.App.4th 836, 842, internal

quotations and citations omitted.)

Defendants advance an arbitration

agreement that Plaintiff signed when Plaintiff worked for Nobu. The arbitration agreement provides that

Plaintiff and Nobu agree to arbitrate “controversies . . . past, present, and

future, arising out of [Plaintiff’s] employment (or application for employment

or its termination) with Nobu, that may arise between [Plaintiff] and (1) Nobu;

(2) its officers, directors, employees, or agents in their capacity as such or

otherwise” (Declaration of Yvonne

Lopez in Support of Motion to Compel Arbitration, Exhibit 1.) Defendants meet

their burden to show that the parties entered into an agreement to arbitrate

their claims.

In

opposition, Plaintiff argues that the arbitration agreement is unconscionable

under *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24

Cal.4th 83. The arbitration agreement

Plaintiff signed specifies that the Federal Arbitration Act governs. (Declaration

of Yvonne Lopez in Support of Motion to Compel Arbitration, Exhibit 1.)

A choice of law provision in an

arbitration agreement is enforceable. (See

Coopers & Lybrand v. Superior Court (1989) 212 Cal.App.3d 524, 538.)

As such, the Federal Arbitration Act

applies. Under the Federal Arbitration

Act, defenses that derive their meaning from the fact that an agreement to

arbitrate is at issue cannot invalidate agreements to arbitrate. (*AT&T Mobility LLC v. Concepcion*

(2011) 563 U.S. 333, 339.) The rules set

forth in *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000)

24 Cal.4th 83 are specific to arbitration agreements. (See *Abramson v. Juniper Networks, Inc.*

(2004) 115 Cal.App.4th 638, 661.) These

rules therefore cannot invalidate the arbitration agreement between Plaintiff

and Nobu. Accordingly,

the Court considers whether the arbitration agreement is unconscionable under

general principles of California law.

Per

Civil Code section 1670.5, "If the court as a matter of law finds the contract

or any clause of the contract to have been unconscionable at the time it was

made the court may refuse to enforce the contract, or it may enforce the

remainder of the contract without the unconscionable clause, or it may so limit

the application of any unconscionable clause as to avoid any unconscionable

result." (Civ. Code, 1670.5, subd. (a).) Unconscionability is defined as "an absence of

meaningful choice on the part of one of the parties together with contract

terms which are unreasonably favorable to the other party." (A & M Produce Co. v. FMC Corp.

(1982) 135 Cal.App.3d 473, 486.) Unconscionability

thus has a procedural and a substantive element. (Ibid.) The Court considers the factors of oppression

and surprise in determining whether a contract is procedurally unconscionable. (Ibid.) Oppression refers to inequality of bargaining

power, which cuts off meaningful negotiation. (Ibid.) Surprise refers to the concealment of the

agreed-upon terms in a lengthy form drafted by the party seeking to enforce

them. (Ibid.)

Substantive

unconscionability refers to the extent to which a contractual term reallocates

the risks of a transaction “in an objectively unreasonable or unexpected or

unexpected manner.” (Id. at 487.)

Both substantive and procedural

unconscionability must be present for a contract to be unenforceable, and “the

greater the unfair surprise or inequality of bargaining power, the less

unreasonable the risk allocation which will be tolerated.” (Ibid.)

The

evidence before the Court shows that Nobu prepared the arbitration agreement,

and Plaintiff had no opportunity to negotiate or discuss the terms of the

arbitration agreement. Nobu required

Plaintiff to execute the arbitration agreement as a condition of his continued

employment. It is therefore a contract

of adhesion. (See *Neal v. State Farm*

Ins. Companies (1961) 188 Cal.App.2d 690, 694.) This is some evidence of procedural

unconscionability. (*Flores v.*

Transamerica HomeFirst, Inc. (2001) 93 Cal.App.4th 846, 853.)

Plaintiff

has not, however, demonstrated that the arbitration clause is substantively

unconscionable. Plaintiff argues the

arbitration agreement is substantively unconscionable because it is one-sided. However,

the arbitration agreement Plaintiff signed is fully mutual. It state requires arbitration of claims “[Plaintiff]

may have against [Nobu] . . . , or that the [Nobu] may have against [Plaintiff].” (Declaration of Yvonne Lopez in

Support of Motion to Compel Arbitration, Exhibit 1.)

Plaintiff also argues that the arbitration

agreement contains substantively unconscionable fee-shifting provisions. It does not.

The arbitration clause states, “Each party shall pay in the first instance

its own litigation costs and attorneys’ fees, if any. However, if any party prevails on a statutory

claim that affords the prevailing party attorneys’ fees and litigation costs,

or if there is a written agreement providing for attorneys’ fees and/or

litigation costs, the Arbitrator shall rule upon a motion for attorneys’ fees

and/or litigation costs under the same standards a court would apply under the

law applicable to the claim(s) at issue.”

(Declaration of Yvonne Lopez in Support of Motion to Compel Arbitration,

Exhibit 1.) As such, the arbitration

agreement allows for recovery of attorneys’ fees and costs to the same extent

as California law. The

arbitration clause is not unenforceable.Plaintiff

also cites Phan v. Knight Sacramento SU Inc. (2026) 121 Cal.App.5th 641,

which is not on point. In that case, the

Court concluded the arbitration agreement was substantively unconscionable because

it applied to “any claim that arises out of the employment context or any other

interaction/relationship we had, have or may have in the future.” (Phan v. Knight Sacramento SU Inc.

(2026) 121 Cal.App.5th 641, 655.) Here,

the arbitration agreement is limited to claims concerning Plaintiff’s

employment with Nobu.(Declaration of Yvonne Lopez in

Support of Motion to Compel Arbitration, Exhibit 1.) As such, the arbitration agreement is not

overbroad. Accordingly,

Defendants’ motion to compel arbitration is GRANTED. This case is stayed pending arbitration.

Moving party to give notice.

IT

IS SO ORDERED.

Dated: September 2, 2026 _____

Rolf M. Treu

Judge of the Superior Court

Any party may submit on the tentative ruling by

contacting the courtroom via email at by no later

than 4:00 p.m. the day before the hearing. All interested parties

must be copied on the email. It should be noted that if you submit

on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.